

Approved as to
form only:

Date: 7/19/16

**AGREEMENT TO SELL AND PURCHASE
REAL PROPERTY**

AGREEMENT TO SELL AND PURCHASE REAL ESTATE dated the ____ day of July, 2016, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming, (hereinafter collectively the "Sellers"), and The Diocese of Cheyenne, a Wyoming nonprofit corporation, (hereinafter "Purchaser").

WITNESSETH:

WHEREAS, Seller is the owner of the following described real property ("Property"):

LOTS 1 and 2, BLOCK 266, original city, Cheyenne, Wyoming

WHEREAS, Purchaser desires to purchase and Seller desires to sell to Purchaser the subject Property described above upon the terms and conditions set forth herein; and

WHEREAS, the parties agree that it is in their best interests to formalize their agreements and understandings regarding such sale and purchase by this Agreement.

NOW, THEREFORE, by and for their mutual covenants and agreements set forth herein and Ten Thousand Dollars (\$10,000.00) that has been deposited by Purchaser with Seller, and is being held in trust by it according to the terms regarding such deposit set forth below, the parties agree as follows:

**ARTICLE I;
PURCHASE OF THE PROPERTY**

1.1 At the Closing, as defined in Paragraph 1.12 below, Seller shall sell and Purchaser shall purchase subject Property described above upon the terms and conditions set forth in this Article One.

1.2 Purchase Price. Purchaser shall pay to Seller, at the time of closing, in exchange for a Warranty Deed to the subject Property, One Million Ninety Thousand and 00/100 Dollars (\$1,090,000.00), payable as follows:

- (a) Ten Thousand Dollars (\$10,000.00) from that earnest money fund being held in escrow by Seller, and
- (b) The remainder of the Purchase Price, in immediately available funds.

1.3 Seller agrees that all fixtures that have been made to the building remain with the real property. Such fixtures, including but not limited to, lighting, plumbing, heating and fire suppression are included with this sale of real property. Further, Seller agrees that the backup generators, are a part of this sale and are intended to be conveyed to Purchaser.

1.4 Seller shall, at Seller's expense, obtain a current commitment for an Owner's title insurance policy in an amount equal to the purchase price, showing merchantable title in the Seller. Seller also agrees to deliver a Title Insurance Commitment within fifteen (15) days after the execution of this Agreement, and deliver the title insurance policy to Purchaser without unreasonable delay after closing and pay the premium thereon at the time of closing. Purchaser shall pay for any title insurance policies required by Purchaser's lender, if any.

1.5 Any defects rendering the title unmarketable or un-recordable shall be cured or corrected at the sole expense of the Seller, its successors, representatives and assigns, within thirty (30) days after notification thereof by the Purchaser, PROVIDED, HOWEVER, that Purchaser shall have had ten (10) days after delivery of such Title Insurance Commitment to examine the same and notify Seller in writing of those defects noted therein which Purchaser shall require to be corrected by Seller. If title cannot be rendered merchantable within thirty (30) days after notification of a defect required to be corrected by the Purchaser, then this Agreement, at the Purchaser's option, may be declared void and of no effect by written notice to the Seller, and each party hereto shall be released from all obligations hereunder and the payments made hereunder shall be thereupon returned forthwith to the Purchaser.

1.6 Title shall be merchantable to the Seller, except as stated in this Paragraph. Subject to payment or tender as above provided and compliance with the other terms and conditions hereunder by Purchaser, the Seller shall execute and deliver a statutory-form Warranty Deed naming Purchaser, or its assignee, as Grantee and containing the release and waiver of all existing homestead rights, if any, and deliver the same to said Purchaser at Closing or as otherwise mutually agreed between the parties, conveying said real property, inclusive of all mineral interests, free and clear of all liens, encumbrances, security agreements and Financing Statements, except:

- (a) The general taxes for 2016;
- (b) Easements for utilities;
- (c) All applicable building and zoning regulations, laws or ordinances, if any;
- (d) City, state and county subdivision laws;

- (e) Reservations, restrictions and easements of record;
- (f) Oil or mineral reservations of record in the subject property;
- (g) Roads and highways, if any;
- (h) Rights-of-way of record for pipelines power and telephone lines, if any;
- (i) Restrictive covenants of record, if any;
- (j) Special taxes or improvements assessments for improvements not yet completed; and
- (k) Installments not due at the date of this Agreement or any special improvement assessments for improvements heretofore completed.

1.7 Any encumbrance required to be paid shall be paid by closing agent at the time of Closing from the proceeds of this transaction.

1.8 Seller covenants that, to the best of its knowledge and belief, upon execution of this Agreement:

- (a) Seller's use of the Subject Property has not violated any law, statute, ordinance, rule or regulation of any government, governmental body, agency or authority (federal, state or local) in any material respect, nor does Seller have any actual or constructive notice of any such violation. To the best of Seller's knowledge, there are no pending or threatened special assessments with respect thereto nor does Seller have any actual or constructive notice of any special assessments;
- (b) Except for the storage of evidentiary materials, to the best of Seller's knowledge: (i) no hazardous or toxic waste, substance or material, as those or similar terms are defined in or for purposes of applicable federal, state and local environmental laws, (collectively "Hazardous Substances") are located on or about the Subject Property and such real estate has not previously been used for the manufacture, refining, treatment, storage, or disposal of any Hazardous Substances;
- (c) Except as described in paragraph 1.9(c), Seller warrants that there are no pending suits, actions, claims, or other proceedings against Seller which affect the subject Property. To the best of Seller's knowledge and belief, there are no uncured violations of law, rules, regulations, ordinances, codes or covenants, conditions, restrictions, instructions, or agreements applicable to the subject Property. To the best of Seller's knowledge and belief, Seller is not under any order of any court, or federal, state, municipal, or other government agency, or subject to any claims, actions, suits, proceedings, or investigations pending or threatened in law or equity for or by any court or governmental agency. To the

best of Seller's knowledge and belief, Seller has not received any notices from any other parties with respect to any such violations or alleged violations or other matters concerning the subject Property. If any such notices are received prior to the Closing, Seller will immediately submit copies of such notices to Purchaser and, to the extent Seller, in Seller's sole and absolute discretion, deems it economically reasonable and prudent to do so, comply with such notices;

(d) Seller further warrants that, to the best of Seller's knowledge and belief, there are no other liabilities which encumber the Subject Property and that to the best of Seller's knowledge and belief, Seller's conveyance of the Subject Property will not violate any private restriction or agreement to which Seller is a party or any applicable statute, ordinance, governmental restriction, or regulation;

(e) Seller warrants that there have been no materials supplied to or work performed on the subject Property for which a lien could at any time hereinafter be filed against the subject Property.

(f) Seller covenants and agrees to pay all outstanding taxes and assessments (if any exist), against the subject Property existing on the date of Closing.

(g) Seller warrants that, to the best of Seller's knowledge and belief, the documents delivered to or to be inspected by Purchaser under this Agreement are in all respects true, accurate, and complete and no other documents which materially affect the subject Property are in existence.

(h) Seller has good and marketable title to all of the subject Property; such subject Property is or will be at Closing free and clear of all mortgages, liens, and encumbrances and is not subject to any restrictions, royalty agreements, patents or other condition which would interfere with the Purchaser's intended use of the subject Property; and

(i) Seller is not in default under any contract, agreement, lease or other document to which it is a party affecting the Property, and has complied with all laws, regulations, and ordinances applicable to its business to the date of this Agreement.

1.9 Seller further agrees to provide the following documents, certificates, and information, to wit:

- (a) Roofing:
 - 1. Seller shall:

- a. provide copies of any current or expired roofing warranties
 - b. have the roofing membrane and associated flashings and related material, inspected by the manufacturer of the roofing membrane,
 - c. have all repairs required or recommended by the above inspection completed to ensure that there are no roof leaks, that the roof drains properly, and that there is no ponding water.
 - d. have all roof drains cleaned and inspected to ensure that they are functioning properly.
- (b) Systems:
- 1. Boiler:
 - a. The Seller shall provide:
 - 1) current boiler inspection certificates.
 - 2) all documents from the previous boiler replacement project.
 - 2. Fire Sprinkler System:
 - a. The Seller shall have the fire sprinkler system inspected and certified as working properly.
 - 3. Fire Alarm System:
 - a. The Seller shall have the fire alarm system tested and certified as working properly.
 - 4. HVAC:
 - a. The Seller shall provide all maintenance records for the HVAC and related systems, as well as a list of any known issues or equipment and systems replacement needs anticipated within the next 18 months.
 - 5. Elevator:
 - a. The Seller shall provide all maintenance and inspection records for the existing elevator.
- (c) Litigation:
- 1. The Seller shall provide complete details regarding the Seller's litigation with Long Building Technologies.
- (d) Reports:
- 1. Asbestos:
 - a. The Seller shall provide current copies of all asbestos inspection reports, material tests, and related material including a copy of the Seller's Asbestos Management Plan for the building.
- (e) Other:

1. The Seller shall provide copies of all inspection reports, structural reports, and any other reports concerning the building during the term of the Seller's ownership of the building.

1.10 Possession of the subject Property shall be delivered to Purchaser at Closing, or as otherwise mutually agreed between the parties, subject to no leases or tenancies.

1.11 Risk of loss shall remain with the Seller until delivery of Deed. In the event that subject Property or any improvements thereto shall be damaged by fire or other casualty prior to time of closing, in an amount of not more than ten percent (10%) of the total purchase price, the Seller shall be obligated to repair the same before the date herein provided for delivery of Deed. In the event such damage cannot be repaired within said time or if such damage shall exceed such sum, this contract may be canceled at the option of Purchaser. Should the Purchaser elect to carry out this Agreement despite such damage, such Purchaser shall be entitled to all the credit for the insurance proceeds resulting from such damage. Seller agrees to maintain insurance coverage for the Property until the time of closing.

1.12 Time is of the essence hereof, and if any payment or any other condition hereof is not made, tendered or performed by either the Seller or Purchaser as herein provided, then this contract, at the option of the party who is not in default or breach, may at that party's option, be terminated by such party, in which case the non-defaulting party may recover such damages as may be proper or such party may require specific performance of the other herein. In the event of default by the Purchaser, and if Seller elects to treat the contract as terminated, then all payments made hereunder shall be forfeited and retained on behalf of the Seller. In the event, however, the non-breaching or non-defaulting party elects to treat this contract as being in full force and effect, then nothing herein shall be construed to prevent its specific performance.

1.13 Due Diligence. The Closing of the purchase shall follow a forty five (45) day due diligence period, which period shall begin upon the last date upon which this Agreement is executed by the parties, during which the Purchaser may conduct an investigation as to the prior use of the property, the physical characteristics of the property, and the likely future use of the property. The Purchaser's investigation may include but shall not be limited to the following:

- a. Investigation of the prior use of the property, including use of the property for the storage of evidentiary materials, to include conducting environmental surveys and testing to be reasonably assured that Hazardous Substances are not readily apparent on the Property;
- b. Investigation of the present city, county, state and/or federal land use laws and regulations applicable to the property which may affect the

Purchaser's present and/or future rights to develop and/or sub-divide the property;

- c. Investigate the availability of ground and/or other sources of potable and/or irrigation water necessary to develop the property in its present and/or a reasonably predictable future state;
- d. Investigate the availability of waste disposal options necessary to develop the property in its present and a reasonably predictable future state;
- e. Determine whether the property may, at the present time, be divided into two building lots by and through any procedure authorized by the City of Cheyenne.
- f. Determine the cost to permit, demolish, and remove all existing structures located on the Property;
- g. Conduct geotechnical and/or geochemical testing of the Property to support the above stated investigations and/or other investigation necessary to determine the suitability of the Property for reasonably predictable future development.

The Seller and the Purchaser acknowledge the wide breadth of the due diligence investigation to be conducted by the Purchaser and that such breadth is a material condition of the Agreement as the Purchaser's offer to purchase the property, based not only upon the present state of the property but upon the Purchaser's intent to maximize its future use and development of the property. The Seller acknowledges that the above stated elements of the Purchaser's due diligence investigation are not all inclusive. The Seller and the Purchaser agree that if, as a result of the Purchaser's due diligence investigation, one or more circumstances are discovered that cause the Purchaser, in their sole and absolute discretion, to decide that they do not wish to purchase the subject property, then the Purchaser shall have, at any time during the due diligence period, the right to terminate this Agreement, without further obligation to the Seller and that upon termination, all earnest money on deposit shall be returned to the Purchaser.

1.14 Closing. The Closing of the purchase and sale of the Subject Property shall occur on or before the _____ day of _____, 2016, at such date, time and place as the parties mutually agree, so long as all conditions precedent set forth above have been met.

1.15 Closing Costs.

- a. Purchaser shall pay all recording fees, survey costs, apportioned property taxes for those taxes for any period following the closure for which Seller previously paid such taxes, and one half of the closing agent's closing fee.
- b. Seller shall pay the premium owners' title insurance policy and one half of the closing agent's closing fee. Purchaser shall pay the other one half of closing agent's closing fee.
- c. Any unreleased judgments, liens, and or other encumbrances affecting all Property included in the purchase price and required to be paid, shall be paid by First American Title Company from the proceeds of the transaction, or paid by the responsible party in cash or certified funds at time of closing.

1.16 Title shall be conveyed at Closing to the Diocese of Cheyenne, a Wyoming nonprofit corporation as Grantee.

ARTICLE II; MISCELLANEOUS PROVISIONS

2.1 The following general provisions apply to this Agreement:

a. This purchase and sale of real estate is being made pursuant to W.S. § 15-1-112(b)(i)(D). Therefore, the respective obligations of the parties hereto are expressly conditioned upon the conditions of the referenced statute being met by the City of Cheyenne.

b. In the event that any party shall become in default or breach of any of the terms of this Agreement, such defaulting or breaching party shall pay all reasonable attorney's fees and other expenses which the non-breaching or non-defaulting party may incur in enforcing this Agreement with or without suit. This provision shall not limit any other remedies to which the parties may otherwise be entitled.

c. Amendments. This Agreement may not be amended or modified, nor may compliance with any condition or covenant set forth herein be waived, except by a writing duly and validly executed by both parties, or in the case of a waiver, the party waiving compliance.

d. Attorney's Fees. In the event of any action at law or in equity, for declaratory relief, or in appellate proceedings to secure or protect rights under, or to enforce any provision of this Agreement, in addition to any judgment entered, the prevailing Party shall be

entitled to recover its reasonable attorney's fees, expert witness fees, court costs and expenses of litigation, with or without suit.

e. Assignment. This Agreement may not be assigned by Purchaser without the prior written consent of the Seller; however, such consent shall not be unreasonably withheld. Any assignment consented to shall include and be subject to the condition that all rights and obligations of the Assignor of this Agreement shall be binding upon the Assignee thereof as if the Assignee was an original party hereto.

f. Binding Effect. This Agreement shall be binding on and inure to the benefit of the parties hereto and their respective successors and assigns.

g. Brokers. Seller and Purchaser represent that they are not represented by a broker in this transaction.

h. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one agreement.

i. Governing Law. This Agreement shall be executed, performed and interpreted in accordance with the laws of the State of Wyoming, without regard to conflict of law provisions. Any action brought by either Seller or Purchaser based upon this Agreement shall be filed in a Court of competent jurisdiction in Laramie County, Wyoming.

j. Incorporation by Reference. Each and all of the recitals set forth above are incorporated into the body of this Agreement as specific and enforceable provisions of this Agreement.

k. No Merger. All terms hereof shall survive Closing and shall not be construed as having merged into any conveyance documents delivered at Closing.

l. Notices. All notices required to be made, as provided herein, shall be addressed to the party to whom the notice is directed as follows:

If to Seller:	City of Cheyenne
	Attn: City Clerk
Address:	2101 O'Neil Avenue, Cheyenne, WY 82001
If to Purchaser:	Diocese of Cheyenne
	Attn: Jeff Nieters
Address:	2121 Capitol Avenue, Cheyenne, WY 82001

Unless otherwise specified herein, all notices shall be given by (i) personal delivery or (ii) certified or registered mail, return receipt requested, and shall be effective and shall be deemed delivered (a) if by personal delivery, on the date of delivery to the address set forth above; and (b) by certified or registered mail, on the date delivered to the United States Postal Service as shown on the receipt.

m. Remedies. No right or remedy conferred upon or reserved to any Party to this Agreement is intended to be, nor shall be, deemed exclusive of any other right or remedy available at law or equity, except as otherwise provided in this Agreement, and each shall be cumulative of every other right or remedy.

n. Rule Against Perpetuities. Any right or option to acquire any interest in real or personal property under this Agreement must be exercised, if at all, so as to vest such interest in the acquirer within twenty-one (21) years after the Effective Date.

o. Severability. If any provision in this Agreement is held to be unenforceable for any reason, it shall be adjusted rather than voided, if possible, in order to achieve the intent of the parties to this Agreement to the fullest extent possible. In such event, all other provisions of this Agreement shall be deemed valid and enforceable to the fullest extent possible.

p. Specific Performance. Each party hereto shall have the right to require specific performance by the other of each and every provision of this Agreement as contemplated herein, and may, if necessary, bring an action in a court of competent jurisdiction to require same.

q. Survival of Representations and Warranties. All representations, warranties, covenants and agreements of the parties in this Agreement shall survive Closing.

r. Time of the Essence. Time is of the essence in the performance of this Agreement.

s. Entire Agreement. This Agreement constitutes the entire agreement between the parties pertaining to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings of the parties in connection with the subject matter. No covenant or condition not expressed in this Agreement shall affect or be effective to interpret, change or restrict this Agreement.

t. Purchaser and Seller agree to make all disclosures and do all things necessary to comply with the applicable provisions of the Real Estate Settlement Procedures Act

of 1974. If either party shall fail to make appropriate disclosures when requested to do so, such failure shall be considered a breach on the part of that party.

u. Except for an action for specific performance of the terms and conditions of this Agreement, the City of Cheyenne reserves all defenses and immunities available under the Wyoming Governmental Claims Act, W.S. § 1-39-101 *et seq.*, and the Purchaser does hereby release and indemnify the City of Cheyenne from and against any and all claims, demands and causes of action which may arise from defects in title or defects in the suitability or functional utility of the Property.

IN WITNESS WHEREOF, the parties have executed this Agreement on the day set forth across from their signatures. This Agreement shall be effective as of the date of the last signature hereon.

SELLER:

CITY OF CHEYENNE, WYOMING

Richard L. Kaysen, Mayor

Date:

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

PURCHASER:

DIOCESE OF CHEYENNE

By (printed name): _____

Title: _____

Signature: _____

Date: _____